

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resource Management **POLICY: 5.016**

SUBJECT: Adults in Custody Workforce

POINT PERSON: Director of Operations

APPROVED: Dolores Matteucci **DATE: APRIL 6, 2023**
Superintendent

SELECT ONE: ☐ New policy proposal ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital (OSH) procedures for a workforce of adults in custody working at OSH.
- B. This policy applies to all staff.

II. POLICY

- A. Oregon State Hospital (OSH) may use an adult in custody worker for special projects or temporarily for work normally completed by permanent staff until requests for positions can be made through the budgetary process. OSH may not assign an adult in custody worker a task that could be assigned to a patient-supported employment position.
- B. The OSH Operations department is responsible for the adults in custody workforce, including coordinating with the Department of Corrections (DOC) and approving adults in custody worker positions in collaboration with the Superintendent or designee.
- C. Staff must follow Procedures A when requesting and overseeing an adult in custody worker.
- D. Mill Creek Correctional Facility (MCCF) guards and adults in custody must follow OSH policy 2.003 regarding infectious disease management.

- E. MCCF must provide the following documentation to the OSH Infection Prevention and Employee Health Department (IPEH) for both the adults in custody and guards:
 - 1. Influenza vaccination status for the current influenza season,
 - 2. Tuberculosis infection status as per Oregon Administrative Rule 333-019-0041 and in accordance with IPEH processes, and
 - 3. Hepatitis B immunization status.
- F. An adult in custody must:
 - 1. sign the OSH confidentiality statement (OSH-STK 76113) before beginning work at OSH;
 - 2. wear an OSH-issued name badge during the work shift as per OSH policy 8.007, "Identification Badges;"
 - 3. obtain a food handler card before beginning work at a kitchen;
 - 4. receive training on standard precautions and personal protective equipment;
 - 5. receive training about chemicals and where to locate safety data sheets; and
 - 6. complete the orientation provided by OSH Facilities department.
- G. An adult in custody may not:
 - 1. have unsupervised interaction with or association with patients,
 - 2. access any staff or patient information,
 - 3. be employed to substitute for state staff,
 - 4. perform reception duties,
 - 5. use telephones, computers, or fax machines,
 - 6. leave OSH grounds without a correctional guard escort, or
 - 7. use power tools unless the adult in custody has received documented and approved training to operate the equipment and is provided instruction on using required personal protective equipment.
- H. Any program or department using adult in custody workers must have a staff at the worksite who has completed the MCCF "Adult in Custody Worker" training.
- I. A staff member who has strong objections to working in close proximity to an adult in custody worker must be accommodated to the degree possible.

- J. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- K. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Adult(s) in custody" in this policy means any person working at OSH through the Adult in Custody Work Program under the supervision of the Department of Corrections (DOC) and who is not on parole, post-prison supervision, or probation status. Adults in custody in this policy does not refer to Oregon State Hospital patients.
- B. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Adult in Custody Worker Process

V. ATTACHMENTS

VI. RELATED OSH POLICIES AND PROTOCOLS

2.003 Infectious Disease Management for Staff

2.017 Influenza Prevention

5.020 Staff and Adult in Custody Worker Relationships

8.007 Identification Badges

Oregon State Hospital Confidentiality and Access Agreement (OSH-STK 76113) [form].

VII. REFERENCES

Oregon Administrative Rule § 333-019-0010.

Oregon Administrative Rule § 333-019-0041.

Oregon Revised Statute § 421.408.